



CHAPTER lxxiv.

An Act to extend the limits of supply of the Wisbech Waterworks Company and to confer further powers upon that Company. A.D. 1907.
[26th July 1907.]

WHEREAS the Wisbech Waterworks Company (in this Act called "the Company") were incorporated by the Wisbech Waterworks Act 1864 (in this Act referred to as "the Act of 1864") and were empowered to make waterworks and to take water for the purpose of supplying water within limits comprising the borough of Wisbech in the Isle of Ely in the county of Cambridge and certain parishes in the county of Norfolk mentioned in the said Act: 27 & 28 Vict.
c. clxxx.

And whereas by the Wisbech Water Order 1876 scheduled to and confirmed by the Gas and Water Orders Confirmation Act 1876 No. 1 the Company were empowered to raise additional capital and by the Wisbech Water Order 1884 scheduled to and confirmed by the Water Orders Confirmation (No. 2) Act 1884 the area of supply of the Company was extended and the Company were empowered to raise further capital: 39 & 40 Vict.
c. xli.
47 & 48 Vict.
c. lxxix.

And whereas by the Wisbech Water Act 1901 the area of supply of the Company was further extended and the Company were empowered to raise further capital and to construct further works: 1 Edw. 7.
c. cxiv.

And whereas the demand for water within the area so defined has increased and continues to increase:

And whereas there are certain parishes and places mentioned in this Act which are not now supplied with water and which can be conveniently supplied with water by the Company and it is expedient that such parishes and places should be included within the limits of supply of the Company;

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And whereas in order to afford a proper and sufficient supply of water within the existing limits of supply of the Company and the parishes and places included within the Company's limits under this Act it is expedient that the Company should be empowered to make works and to take water as in this Act provided :

And whereas it is expedient that the Company should be authorised to raise additional capital and that the other provisions of this Act should be made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas plans and sections showing the line situation and levels of the work authorised by this Act and also a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of or under the powers of this Act were duly deposited with the clerk of the peace for the county of Norfolk and are herein-after referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Wisbech Water Act 1907.

Incorporation of general Acts.

2. The following Acts and parts of Acts (namely) :—

The Lands Clauses Acts ; and

The Waterworks Clauses Acts 1847 and 1863 except the words in section 44 of the former of those Acts
 “ with the consent in writing of the owner or reputed
 “ owner of any such house or of the agent of such
 “ owner ” ;

so far as the same are applicable for the purposes of and not inconsistent with the provisions of this Act are incorporated with and form part of this Act.

3. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

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Application
of Companies
Clauses Acts.

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall (subject to the provisions of this Act) extend and apply to the Company and to the additional capital by this Act authorised to be raised :

Provided always that nothing in this Act or the recited Acts and Orders shall authorise the Company to raise any sum authorised to be borrowed or any part of such sum by the creation of shares in the Company or to convert into share capital any moneys already borrowed by them.

4. Terms to which meanings are assigned in Acts incorporated wholly or in part with this Act or which have therein special meanings have in this Act (unless varied thereby) the same respective meanings.

Interpreta-
tion.

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PART II.

EXTENSION OF LIMITS.

Extension of
limits of
watersupply.

5. The limits within which the Company may supply water are hereby extended so as to include the parishes and places following (which are in this Act referred to as "the additional limits") (that is to say):—

Fincham Stradsett Crimplesham Wimbotsham Bexwell
Downham Market Downham West Stow Bardolph
Shouldham Thorpe South Runcton Holme-next-Runcton
Wallington - with - Thorpland Denver Fordham Royston
and Hilgay in the county of Norfolk and the parishes of
Wimblington Doddington Wisbech Saint Mary (including
Guyhirn and Murrow) Parson Drove (including Southea-
cum-Murrow) Newton and Tydd Saint Giles in the Isle
of Ely;

and for the purposes of such supply and subject to the provisions of this Act the Company shall have and may exercise all the powers rights privileges and authorities and shall be subject to the same obligations as they now have and may exercise or are subject to under the provisions of the recited Acts and Orders within their existing limits and the provisions of the recited Acts and Orders so far as the same are respectively in force at the passing of this Act shall subject to the provisions of this Act extend and apply to the additional limits and the supply of water thereto:

Provided that if at any time after the expiration of five years from the commencement of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of a parish within the additional limits any local authority who but for the passing of this Act would be empowered to supply water in such parish may provide a supply in the whole or any part of such parish within the additional limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such parish within the additional limits not sufficiently supplied by the Company as if in either case there were no Company authorised by this Act to supply water therein.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such parish such difference shall be settled on the application of either party by the Board of Trade. A.D. 1907.

PART III.

WORKS AND LANDS.

6. Subject to the provisions of this Act the Company in the line and situation and upon the lands shown on the deposited plans and according to the levels shown on the deposited sections may make and maintain in the county of Norfolk an aqueduct conduit or line or lines of pipes commencing in the parishes of Marham and Fincham or one of them at the boundary of the area of supply of the Company at the point at which the boundary between the said parishes intersects the main road leading from Marham to Downham Market and terminating at the other boundary of the area of supply of the Company in the parishes of Outwell (Norfolk) Stow Bardolph Downham Market and Downham West or some or one of them at the point at which the boundaries between those parishes respectively intersect or converge upon the said main road at Nordelph together with all such cuts channels culverts drains ways and other incidental works as may be necessary or convenient in connexion with the before-mentioned work. Power to construct works.

7. Subject to the provisions of this Act the Company may enter upon take and use such of the lands shown on the deposited plans and described in the deposited book of reference as they require for the purposes of the works by this Act authorised. Power to take lands.

8. In the construction of the works authorised by this Act the Company may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and they may also deviate from the levels shown on the deposited sections to any extent downwards but not exceeding five feet upwards Provided that no part of any line of pipes shall be constructed or laid so as to be above the surface of the roadway or ground in which the same is intended to be laid unless so shown on the deposited sections and then only to the extent so shown. Limits of deviation.

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For protec-
tion of Great
Eastern Rail-
way Com-
pany and
Midland and
Great North-
ern Railways
Joint Com-
mittee.

9. Notwithstanding anything in this Act or any other Acts or Orders contained the following provision for the protection of the Great Eastern Railway Company and the Midland and Great Northern Railways Joint Committee (herein-after respectively referred to as "the protected company") shall be in force and have effect and be binding on the Company :—

In laying down and executing or in effecting the repairs and renewals of any mains pipes or other works which the Company may by this Act be authorised to lay down and execute upon across over under or in any way affecting the railways and works of the protected company or the bridges over such railways or the approaches thereto or any viaducts stations or level crossings of the protected company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the protected company and only according to plans and sections to be submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Company and where the Company open and break up any roads over any bridges and level crossings and the approaches thereto which the protected company is or may be liable to maintain they shall restore and make good the same to the reasonable satisfaction of the protected company and shall not cause any injury to such railways and works bridges level crossings approaches viaducts or stations or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts or operations of the Company or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge or level crossing the Company shall make compensation in respect thereof to the protected company the amount of such compensation in case of difference as well as the settlement of any other dispute or difference arising under this section to be determined by arbitration under the Arbitration Act 1889.

For protec-
tion of Nor-
folk County
Council.

10. The following provisions for the protection of the county council of Norfolk (in this section called "the county council") shall (notwithstanding anything in this Act contained) unless otherwise agreed in writing between the county council

and the Company apply and have effect in respect of the exercise within the said county of the powers conferred upon the Company by this Act:—

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- (1) The Company shall not in the construction of the works by this Act authorised without the previous consent in writing of the county council under the hand of their county surveyor (in this section referred to as "the county surveyor") which consent shall not be unreasonably withheld raise lower or divert any main road vested in the county council or to which or to the maintenance repair and improvement whereof the county council make any contribution or payment :
- (2) All mains pipes or other works to be laid or constructed under the powers of this Act in along or across any road vested in or repairable by or under the control of the county council shall be constructed and laid as near as practicable to the side of such road :
- (3) All works to be carried out under the powers of this Act shall when commenced be executed with all reasonable despatch and so as not to stop impede or interfere with more than is absolutely necessary for the purpose the traffic over or along any such road :
- (4) The Company shall on demand pay to the county council the proportion of the costs which the county council may reasonably incur in the repair and reinstatement of so much of any such road in which any mains pipes or other works are laid as may be attributable to the damage (if any) caused by the concentration thereon of the traffic during the construction laying alteration maintenance or repair of any such mains pipes or other works or any part or parts thereof :
- (5) The county council shall not be liable for any claim for damages in respect of any injury which may be caused to any mains pipes or other works belonging to the Company through the use by the county council of any steam roller scarifier traction engine or other similar appliance or through the reasonable exercise of any rights functions powers or privileges now vested in the county council :
- (6) If any difference shall at any time arise between the county council and the Company as to giving effect

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to any of the provisions of this section such difference shall be settled by an arbitrator to be agreed upon between the county council and the Company or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 or any statutory modification thereof for the time being in force shall apply to every such arbitration.

Power to acquire additional lands.

11. Subject to the provisions of this Act the Company in addition to the other lands they are by this Act authorised to acquire may enter upon take and use compulsorily or by agreement and hold the following lands (that is to say):—

Lands in the parish of Marham in the county of Norfolk numbered on the $\frac{1}{2500}$ Ordnance Survey map (2nd edition 1905 Norfolk Sheet LVIII-2) 182 183 184 185 186 187 189 199 201 202 203 and 204 in the said parish and situate and abutting on both sides of the road from Marham to Narborough near the Fox and Hounds public-house.

Period for compulsory purchase of lands.

12. The powers for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to take additional lands by agreement.

13. The Company may for the purposes of their undertaking acquire by agreement either in fee simple or for any term or terms of years (not being in any case less than ninety-nine years) in addition to lands which they are already authorised to hold under the powers of any of the recited Acts or Orders or to take by compulsion under the powers of this Act any lands not exceeding in the whole ten acres or any easement right or privilege therein thereunder or thereover (not being an easement right or privilege of water in which persons other than the grantors have an interest) but the Company shall not create or permit the creation of a nuisance on any such lands nor use any such lands for any building except buildings required for the undertaking of the Company.

Limiting powers of Company to abstract water.

14. The Company shall not sink any well upon or construct any works for taking or intercepting water from any lands which may be acquired by them after the passing of this Act unless the works and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company in fee either absolutely or in consideration of any yearly or other rent any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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Power to
grant ease-
ments &c.

PART IV.

CAPITAL.

16. The Company may apply to the purposes of this Act to which capital is properly applicable any moneys they are authorised to raise and which they do not require for the purposes for which such moneys were authorised to be raised and may (subject to the provisions of Part II. of the Companies Clauses Act 1863) for the purposes of this Act and for the general purposes of their undertaking from time to time raise any additional capital not exceeding in the whole thirty thousand pounds by the creation and issue at their option of new ordinary shares or stock or of preference shares or stock which shares or stock shall for all purposes form part of the general capital of the Company :

Company
may raise
additional
capital.

Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the said sum of thirty thousand pounds.

17. The Company shall not issue any share created under the powers of this Act of less nominal value than ten pounds nor shall any such share or any stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof.

As to vesting
of new shares
and stock.

18. The proprietors of any ordinary shares or stock to be issued under the authority of this Act shall be entitled to such number of votes in respect thereof as the nominal amount

As to votes
of proprietors
of new shares
and stock.

A.D. 1907. represented thereby would have entitled them to if the same had been original shares or stock of the Company but unless otherwise specified in the resolution creating any preference shares or stock the proprietors of such preference shares or stock shall not be entitled to any votes in respect thereof.

New shares and stock to be offered by auction or tender.

19. Notwithstanding anything in this Act contained the Company shall when any new shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than two hundred pounds nominal value of shares or stock and that notice of the amount of the reserve price put upon such shares or stock shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bidding or offer by tender of any holder or holders of shares or stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of shares or stock shall be accepted in preference.

Purchase money of capital sold to be paid within three months.

20. It shall be one of the conditions of any sale of shares or stock under this Act that the whole nominal amount thereof together with any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be given as to sale of shares or stock.

21. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the town clerk of the borough of Wisbech and the clerks to the several district councils within the Company's limits of supply and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be advertised once in

each of two consecutive weeks in one or more local newspapers circulating within the limits of supply. A.D. 1907.

22.—(1) When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at such reserve price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or partly to one or partly to another.

Disposal of shares or stock not sold by auction or tender.

(2) Any shares or stock not so disposed of or so offered and not accepted within the time limited by the directors of the Company shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act and at such time or times as the directors may think fit and any shares or stock not then sold may be disposed of by the directors at such price or in such manner as they may think fit.

23. Any sum of money which shall arise by way of premium from the issue of any such shares or stock after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Application of premium arising on issue of shares or stock.

24. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 and to the provisions of section 33 (Debenture stock) of the Wisbech Water Act 1901.

Debenture stock.

25. The Company shall not in any one year make out of their profits any larger dividend on the additional capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such additional capital as shall be issued as ordinary capital (unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on the ordinary share capital which shall have fallen short of

Limit of dividend on new capital.

A.D. 1907. — the rate of seven pounds per centum per annum) or six pounds in respect of every one hundred pounds actually paid up of such additional capital as may be issued as preference capital.

Power to borrow in respect of additional capital.

26. The Company may from time to time subject to the provisions of this Act borrow on mortgage of the undertaking any moneys not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock have been issued and fully paid up together with the premium (if any) obtained upon the sale thereof and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Priority of existing mortgages.

27. All mortgages granted in pursuance of the powers of any Act of Parliament by the Company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Act under which such mortgages were respectively granted have priority over all mortgages granted by virtue of this Act.

Repealing existing provisions as to receiver.

28. All enactments in force under any Act relating to the Company with respect to the appointment of a receiver by mortgagees of the undertaking of the Company are hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings pending at the passing of this Act under any such provision.

Appointment of receiver.

29. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

30. All money to be raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking or works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

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Priority of
mortgages
and debenture
stock
over other
debts.

31. All money which the Company are by this Act authorised to raise by new shares or stock or by borrowing or by debenture stock shall be applied only to the purposes of this Act and to the general purposes of the undertaking being in all cases purposes to which capital is properly applicable.

Application
of sums raised
under this
Act.

PART V.

MISCELLANEOUS.

32. From and after the passing of this Act section 43 (Water not to be laid on under constant pressure) of the Act of 1864 shall be and the same is hereby repealed.

Repeal of
section 43 of
Act of 1864.

33. Section 45 (Rates at which water to be supplied for domestic purposes) of the Act of 1864 shall be read and have effect as if at the end thereof the following proviso were added (that is to say):—

Amendment
of section 45
of Act of
1864.

Provided that where the water rate is chargeable on the value of part only of a tenement entered in the valuation list such value shall be a fairly apportioned part of the value of the whole tenement entered as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

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Amendment
of section 46
of Act of
1864.

34. As from the passing of this Act a supply of water by the Company for domestic purposes shall subject to the payment of the prescribed rates therefor include the supply of water to one fixed bath not being capable of containing when filled more than fifty gallons of water and section 46 (Domestic purposes to include one watercloset) of the Act of 1864 shall be read and have effect as if the words "but not for a bath" were omitted therefrom.

Amendment
of section 42
of Act of
1901.

35. From and after the passing of this Act subsection 2 of section 42 (As to supply of water to baths and gardens) of the Act of 1901 shall be and the same is hereby repealed.

As to supply
of water for
purposes
other than
domestic.

36. The Company shall not make a higher charge for water supplied by them by meter than two shillings per one thousand gallons but the Company shall not be bound to accept for water so supplied a less annual sum than two pounds exclusive of meter rent.

Costs of Act.

37. All costs charges and expenses preliminary to and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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